

THE UNIVERSAL HOUSE OF JUSTICE

1991-01-02

To an individual b ahá'í

1 dear b ahá'í f riend,
2 proposals for a number of changes to bahá'í electoral, judicial and reviewing
3 procedures. . . .

The questions you have raised are worthy of the most serious consid-

4 eration. Although they are specifically concerned with certain administra-tive
procedures, they touch upon fundamental principles of far-reaching implications. To a
significant extent the answers to them relate to the basic attitude we as bahá'ís have both
toward the nature of man at the

5 advent of the coming of age of the entire human race, and toward the developmental
processes of a world community in the initial stages of its formative age during the most
critical time of transition from the old

dispensation to the new.101.2

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104 185The sense of our newness as an evolving community is underscored by
105 the fact that at this very moment we are engaged for the first time in prepar-
106 ing for the publication of the full text of our book of laws, the kitáb-i-
107 Aqdas, with annotations. This anticipated event indicates how much more
108 we have to understand our fundamental laws before our institutions can proceed to
lay down rules and regulations beyond those which are already
109 in effect. The house of justice feels that enough has been stated by the
110 guardian to enable the friends to cope for the time being with the problems
111 you have cited. however, we are to convey the following comments on the
112 various points of your letter.

for all its size—some five million members worldwide, the majority of

113 whom have joined the faith in the past 15 years—the bahá'í community is
 114 still far from attaining the administrative maturity that would allow for the
 imposition, even if it were permissible, of certain rules. however acute your
 115 observations, they are based on a history limited in time and in experience.
 116 it bears noting that even though the systematic efforts of establishing the
 117 bahá'í administration began some seven decades ago, a large majority of the
 118 current National Spiritual Assemblies (95 out of 151) came into existence only during
 the last 26 years and have emerged in communities the vast majority of whose members are
 not yet deeply grounded in the adminis-trative principles of the faith. ordinarily, a
 substantial proportion of the
 119 voting members of the communities do not regularly participate in bahá'í
 120 elections. moreover, because of the relatively small number of nationally
active believers, the range of choice in many communities may seem to
 121 the conscientious voter to be limited in terms of the stated qualifications
 122 for membership on the National Spiritual Assembly. given these facts, it is
 123 remarkable that at this stage in the development of the world community, National
 Spiritual Assemblies are successfully elected annually in accor-
 124 dance with basic b ahá'í principles.
 125 you hold that for the National Spiritual Assembly of a country like ger-
 126 many or the united States to be composed of almost the same members over
 127 many years is neither comprehensible nor advantageous. change is indeed
 128 healthy for a living organism, as Shoghi effendi pointed out, but he also said
 129 that change for change's sake is unwise. without defending any particular
 130 position, we feel it important to recognize that a period of no change in Assembly
 membership could be a stabilizing necessity for a community. A
 131 believer who had concerns similar to your own in his wish to see more rapid change
 in the membership of his National Spiritual Assembly suggested to 102.3

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104 186Shoghi effendi two alternative solutions: (1) that only delegates would be
 105 eligible for membership on the National Spiritual Assembly; and (2) that no
 106 believer should serve more than nine consecutive years on a Spiritual Assem-

107 bly, suggesting that after the lapse of one year the believer could be reelected for
another period of nine years. The guardian's reply was conveyed in a

108 letter written by his secretary on 6 j uly 1944:

regarding your questions concerning the advisability of changing the

109 basis of the National Assembly's election and confining it to the body of delegates or
of limiting the term of office: he feels that as any such

110 changes are of a radical nature and should therefore also apply to the National
Spiritual Assemblies of other countries they are inadvisable and premature, both for this
reason and because of their very nature.

what is needed is to get the Administration in its present form

111 to run more efficiently and at the same time to build up a higher sense of
responsibility among the body of the believers. They should be encouraged to think more,
not only about the qualifications of

members of their elected bodies, but also about such things as you

112 mention, the law of averages, the age and indisposition of some of the members, etc.

113 102-1

114 with respect to the united States, your observation does not quite hold

up if you consider the numerous changes in membership which have oc-

115 curred in that country's National Assembly over the last 30 years, and even

116 in the last eight years when two-thirds of the membership has changed and there
have been several changes of officers. Nor has the membership of the National Spiritual
Assembly of germany remained static: according to

117 records at the bahá'í world center, during the last 12 years, there have been

12 individual changes in that Assembly's membership; today only one from the
members of the 1978-79 Assembly remains on the body.

you contend that an elected body which has been formed in the same

13 manner over many years conceals the danger of rigidity, immobility, in-sistence on
tradition, etc. Such condition cannot indefinitely remain con-cealed if the body of the
community with its many local entities and varied

14 activities, including the Nineteen day feast, is functioning conscientiously.

15 There is a direct relationship between the quality of the functioning of the

16 102-1. dg, p. 24.102.5a

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187 local communities and the condition of the National Spiritual Assembly,

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but the dynamics of this relationship have yet to be fully recognized in all

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national communities. In this regard the work of the continental coun-

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selors and their Auxiliary boards is of particular relevance, since assisting

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Spiritual Assemblies to function properly is one of their duties.

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There is a tendency on the part of the friends, because of its broad au-

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thority and overarching responsibilities, to concentrate unduly on the influ-

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ence, real or imagined, of the National Spiritual Assembly; however, little is appreciated of the latent vast and salutary effect which well-functioning local communities can exert on the development of the national commu-

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nity and thus on the very shaping of the National Spiritual Assembly itself.

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Some of the problems now evident in the composition and performance of National Spiritual Assemblies have their roots in weakness and malfunc-

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tioning at the local level, where the true character of the faith has the widest

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latitude to express itself both in the corporate manner in which practical

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matters are dealt with and in the quality of the involvement and initiative of the individuals composing these communities. The ideal functioning of

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a National Spiritual Assembly and of the electoral system that sustains it

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obviously cannot be forced and must trust to development over time as experience is gained.

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The bahá'í system of elections provides the voter with a degree of free-

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dom unequalled by any other system; as a corollary, it restricts the free-dom of those called upon to serve. The voter is called upon to consider prayerfully the range of believers for whom he can vote, and then to vote

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only for those who best combine the necessary qualities, irrespective of any

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extraneous or material factors. Such an attitude, if dispassionately exercised by every voter at each election, should ensure that those elected are among those best suited, making allowance for lack of perfection in the voters.

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your observation that the current system of bahá'í elections can lead to

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a perpetuation of the same membership on a Spiritual Assembly is quite accurate, but the system is not bound by any requirement to reelect the same membership; it is as free to do so as it is capable of effecting gradual

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or radical change, depending solely on the voters' perception of prevailing

circumstances and conditions and of the needs of the cause. Time and

126 education of the friends will bring about corrections of any faults in the
127 current operation of the electoral system.

128 The sacred nature of bahá'í elections, especially as it is expressed in the
129 freedom of conscience of the voters, is, of course, a major consideration 102.8

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104 188 in any attempt to introduce rules such as you have recommended. A letter

105 dated 4 february 1935 written on behalf of Shoghi effendi to an individual

106 believer stresses the importance of such freedom and indicated that it

107 constitutes the distinguishing feature and the marked superiority of the bahá'í
electoral methods over those commonly associated with

108 political parties and factions. . . .

109 (The Light of Divine Guidance: The Messages from the Guardian of the

Bahá'í Faith to the Bahá'ís of Germany and Austria, p. 67)

110 further, in a letter dated 14 may 1927 Shoghi effendi described ways in

111 which the voters should carry out their sacred responsibilities in electing

112 members of Spiritual Assemblies:

i feel that reference to personalities before the election would give

rise to misunderstanding and differences. what the friends should do

113 is to get thoroughly acquainted with one another, to exchange views,

114 to mix freely and discuss among themselves the requirements and qualifications for
such a membership without reference or application, however indirect, to particular
individuals. we should refrain from

115 influencing the opinions of others, of canvassing for any particular individual, but
should stress the necessity of getting fully acquainted with the qualifications of membership
referred to in our beloved's

116 Tablets and of learning more about one another through direct, per-sonal experience
rather than through the reports and opinions of our friends.

117 [Principles of Bahá'í Administration: A Compilation, 1st indian ed. (New

delhi: bahá'í publishing Trust, 1982), p. 7]

118 it is clear then that to adopt a rule limiting the eligibility of an Assembly
119 member for reelection would limit the freedom of choice of the electors and
120 would add an element completely discordant to the entire pattern of bahá'í
121 elections.

122 The question of limiting the terms of office must be considered in the
123 same light, but a National Spiritual Assembly need not accept an untenable situation
with regard to any of its officers. while the National Spiritual

124 Assembly has no control over the composition of its membership, it does
125 have control over the performance of its own officers and is free to discuss its 102.11a

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104 189 concerns if an officer is declining in his functions. if it becomes imperative

105 not to reelect an officer, the members should not be inhibited by secondary

106 considerations. if the disadvantage to the institution of reelecting an officer

107 outweighs all other considerations, the members should not fail in their

108 duty to act in the best interest of the cause as conscience dictates. This

109 requires moral courage. one of the virtues of secret balloting and non-elec-

110 tioning in bahá'í elections at any level is the freedom afforded the voter

111 to act privately and conscientiously, and it removes any need for the voter to reveal
or justify his choice to anyone. questions affecting the personal

112 circumstances of the officer, such as his employability outside the bahá'í

113 community, financial needs, etc. should be dealt with separately and with candor and
considerateness. in a case of extreme difficulty the guidance of

114 the house of justice may be sought.

115 you raise concerns about the problems that can arise from the service of

a husband and wife on the same Assembly. we should point out that the

116 same problems can arise from the joint service of a parent and child, of two brothers,
of two partners in business, or of any two other people who

117 have close association outside their membership on the Assembly. A rule to

118 deal with all these possibilities would itself introduce serious problems. The solution
to this is a question of maturation. bahá'ís have to learn to stand on
119 their own two feet and speak their minds and judge according to their own
120 understanding, as strongly exhorted by bahá'u'lláh in the hidden words,
121 in which he declares that "The best beloved of all things in my sight is
justice."

122 102-2

123 you call attention to the conflict of interest and other problems which
124 can arise if a member of an Assembly is called upon to consult on a matter which
concerns him personally and intimately; for example, to be a judge in
125 his own case or in that of his spouse. Such a situation can, indeed, produce serious
and embarrassing complications. The house of justice has held that
126 it is not proper for a member of a Spiritual Assembly to be debarred from
127 exercising his right to membership in the consideration of such matters. (in
128 some instances, the individual concerned has exercised on his own initiative
129 the option of absenting himself from the proceedings to allow his fellow members
greater freedom to judge the case.) however, in certain circum-
130 stances, an Assembly may find it wise and helpful to avoid the problems

131 102-2. hw , Arabic no. 2.102.13

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104 latent in such a situation by adopting different approaches: it could appoint
105 a special committee to deal with the matter on its behalf; or it could refer
106 the case to the National Spiritual Assembly for it to deal with, either directly
107 or through a committee.

108 you offer the suggestion that a "bill of rights" be formulated to define
109 basic human rights and to set out the legal position of the believers in rela-
110 tion to the institutions as a means of eliminating arbitrary behavior and
111 the possible miscarriage of justice. The house of justice asks us to say that
112 undoubtedly such procedures as will be required in the future to protect the rights of
individuals in their relationship to the institutions will evolve.

At the present time, however, the imposition of them would complicate

113 the functioning of Spiritual Assemblies without providing a commensurate degree
of advantage. The basic safeguard, which has been in force, is

114 the right of every believer to appeal a decision, first to the local Assembly

115 which rendered it, then to his National Spiritual Assembly, and finally to

116 are bound by the teachings of the faith to uphold freedom of expression

117 and to safeguard the personal rights and initiative of the individual. The
responsibilities and duties of the institutions towards the believers are also incorporated, in
broad terms, in such documents as the constitution of the

118 universal house of justice and the declarations of Trust and the by-laws

119 of the National and local Spiritual Assemblies. in addition, the letter of 29

december 1988 to the American bahá'í community from the house of jus-

120 tice draws attention to the "equilibrium of responsibilities" that underpins

121 the relationship between the Assemblies and the believers, and it reaffirms a

122 nonadversarial framework to guide their interactions.

123 102-3

regarding the issue of the competent review of the writings of bahá'í

124 authors, the house of justice is of the opinion that the difficulties which

125 arise in the review process come, not from a need for clarification of the guidelines,
but from a need for good judgment and common sense in their application. it endeavors
from time to time to improve the functioning of

126 National Spiritual Assemblies and their reviewing committees in this area.

in relation to your suggested minimum requirement that reviewers

127 possess the requisite factual competence to perform the reviewing task,

128 102-3. See no. 60, pp. 102-20.102.15

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104 191we are to say that the house of justice does not feel that it is necessary

105 for the reviewer to be qualified in the same discipline as the writer of

106 the document. for example, in the case of an article by a professional

107 historian, it is not the function of the reviewer to ascertain the correct-

108 ness of the article from a historian's point of view; it is his task to ensure that the
writer has not, in the course of his discussion, misrepresented

109 the bahá'í teachings or put forward theses which are incompatible with
110 being a bahá'í. it is evident, then, that reviewers should combine a pro-

found knowledge of the faith and understanding of its principles with

111 the wisdom and good judgment to understand their limitations in the author's
specific area of expertise. furthermore, authors of scholarly

112 works that are based on materials that may not be known or available to

113 those who must do the reviewing are at liberty to bring this situation to

114 the attention of the responsible National Assembly. Should a difference

115 finally, we are to say that the house of justice entirely agrees with your

116 perception that elements of the "old" order should not be discarded simply because
they are old. The revelation of bahá'u'lláh provides the essential

117 laws and principles on which all must be built, but in this building, and

118 in the carrying out of our work, we bahá'ís should take the utmost ad-

119 vantage of every skill and element of experience available to us, no matter from
where it comes. we must, however, be careful in our approach. As the

120 methods of the old order fit the stage of the evolution of society in which they were
conceived, it is not always possible to judge clearly which of them may safely be applied to
the operation of the bahá'í community. what we

121 have to bear in mind is that the old systems represent immature stages in

122 the political evolution of mankind and that their best features have, ac-

123 cording to Shoghi effendi, been incorporated into the bahá'í Administrative

124 order. we should therefore not be too anxious to adopt old methods in our

125 efforts to correct perceived irregularities, which may only be incidental to

126 the transition taking place rather than intrinsic to the system ordained by

127 bahá'u'lláh.

128 The house of justice trusts that these comments will aid your thinking

129 about these important issues and assures you of its prayers on your behalf.

130 with loving bahá'í greetings,

Department of the Secretariat 102.18

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**Safeguarding against Unsettled Conditions
in the Middle East**

[signed: The Universal House of Justice]